

THEODORE ROOSEVELT NATIONAL PARK WATFORD CITY, NORTH DAKOTA

REPLACE BOUNDARY FENCE – NORTH UNIT ZONE 1

PMIS 314720

Drawing No: 80129

PROJECT SPECIFICATIONS



NATIONAL PARK SERVICE
FEBRUARY 2026

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SECTION 01 10 00

DIVISION 1 SHORT FORM GENERAL REQUIREMENTS

PART 1 – GENERAL

ITEM 1 - DESCRIPTION OF WORK

- 1.1 Background: The North Unit boundary fence of Theodore Roosevelt National Park is an essential component in effective natural resource management. Many tourists visit the park to view the bison herds. The park boundary fence directly affects the animals and the related visitor experience while touring the park. The NPS has the responsibility to maintain its fences to develop and maintain good relationships with park neighbors, protect the general public, and protect the various species of animals located within the park boundary. The park must maintain its boundary fence in good condition to keep cattle from encroaching on park land which creates resource damage, and to keep large park ungulates (bison, elk) largely contained and managed.

This project will provide conservation work through replacement of a segment of existing boundary fence with new fence to protect and manage the bison herds within the North Unit of the park. The alignment to be rehabilitated by replacement is within the wilderness area designation of the park which will require limitations on equipment use and means of access. Access to the project location will be from the east across U.S. Forest Service land through a permissible route shown in the construction documents with defined parameters of use identified in the construction documents (Sheet L0-2).

The existing fence is approximately 6-feet in height and comprised of wood posts, steel pipe posts, steel U-channel and T-posts carrying livestock grade woven wire mesh or 3-wire barbed strand fencing. The alignment in this scope of work has two locations which cross intermittent waterways by a cable suspension fence of hanging wood panels which are failing and will be replaced under this contract as all metal suspended panels. New fence shall be constructed to a height of 7'-0" and comprised of galvanized steel pipe posts carrying heavy duty livestock rated woven wire mesh. Two wire suspension span fence segments across existing intermittent waterways, approximately 60-feet in span each, will be constructed. Three swing gate structures and one hiking trail self-closing gate shall be included in the Base Bid scope of work for construction. Length of new fence construction and existing fence removal shall be approximately 0.83 miles (4400 L.F.) under a Base Bid line item, as well as under Bid Option 1, subject to availability of funds, continue with new fence construction of an additional 0.25 miles (1300 L.F.), and under Bid Option 2, subject to availability of funds, continue with new fence construction

across a saddle between two buttes an additional 0.08 miles (450 L.F.) (distances approximated from NPS performed survey and county available LiDAR topographic surface).

The project is within the wilderness area of the park and NPS is required to conduct a minimum requirement of permissible equipment use. This requirement is passed on to the Contractor as conditions under this contract. Parameters and limitations for equipment used defined within these construction documents (Part 3.11 and Drawing Sheet L0.2).

All overnight lodging will be at the responsibility of the Contractor. As a member of the public, NPS park campground reservations and NPS park backcountry camping permits may be accepted as an alternative to supplement periods of outside park lodging. All in-park lodging shall be in accordance with Theodore Roosevelt National Park regulations.

1.2 Work Covered by the Contract Documents:

- A. Project Location: Approximately 25 miles south/southwest of Watford City, North Dakota.
- B. Work consists of: Providing all materials, equipment and labor to remove approximately 4400 linear feet of existing boundary fence and replace with new fence constructed to the drawings and specifications defined within these contract documents (specifications and drawings) as a Base Bid. Within that length, construct two cable suspension fences with hanging metal and chain panels across waterway and drainageway ravines measuring approximately 60-feet in span and a depth to ravine bottom of approximately 15-feet (Corral Creek crossing) and approximately 8-feet (un-named drainageway) respectively. Base Bid scope of work terminates with installation of double H-brace corner structures at the west and east point of tying back to existing fence. Tie existing fence remaining to double H-brace corner structure. As Bid Option 1 which the NPS may elect to award, based on availability of funds, the removal and replacement of an additional 1300 linear feet of boundary fence beginning from the west termination of the base bid fence and extending to a point along the ridge of a butte identified in the construction drawings. Additionally, as Bid Option 2 which the NPS may elect to award, based on availability of funds, the removal and replacement of an additional 450 linear feet of boundary fence independent section across the saddle of a butte.

New fence shall consist of galvanized steel round posts with shop prepared thru-holes to receive tie wire, high strength woven wire mesh rolled fencing as manufacturer recommended for bison livestock uses, varied gauges of wire for tying off mesh and H-brace assemblies, 3/8" steel aircraft cabling, 3 steel framed and hinged permanent swing gate structures and 1 self-closing hiking trail passage-gate. The two cable suspended fence sections shall consist of 5/8" steel cable rope, well casing steel abutment fence panels, concrete post and deadman anchor footings, galvanized marine grade long link chain, and steel pipe, threaded rod, and rebar panels in welded configurations. All materials listed define the salient characteristics of the minimum level of performance to be provided by respective materials further defined and listed in the construction drawings sheet L0.1 and details in the L2 series sheets. Basis of design acceptable manufacturers named are for Contractor reference and consideration only as they meet the salient characteristics. **All materials proposed for use by the Contractor shall meet or exceed the performance criteria of the basis of design product.**

The Contractor shall be responsible for determination of all final quantities. See respective notes (L0.1) and details within the construction documents which define minimum line post spacing, required location criteria for single or double H-brace structures, and use of rigid livestock panel wire panels to supplement woven wire in locations that warrant greater rigidity in fence material.

The project will be conducted in a manner as determined by the Contractor's means and methods such that at the end of each workday, the fence alignment (new fence transitioning to existing fence) shall remain secure. Do not remove more fence in a day than can be replaced in the same day. The Contractor shall adhere to the existing alignment to the greatest extent reasonably possible except where alignment adjustments are clearly called out on the construction drawings (i.e. Corral Creek ravine crossing). The Contractor shall be allowed to make minor adjustments due to landform influences in the alignment within a tolerance of 5-feet. Any proposed fence alignment adjustment greater than 5-feet shall be approved by the COR in writing. The entirety of the new fence shall be placed on NPS land unless directed by NPS through agreement with the U.S. Forest Service. No encroachment onto private land ownership shall be allowed under any circumstances.

The Contractor shall provide a North Dakota licensed surveyor to field locate and mark the north section line of section 23, T. 147N R. 100W, 5th Principal Meridian, McKenzie County, North Dakota. Surveyor will ensure that the NE and NW 1/16 corners as well as the N quarter corner are set for said section line. Monuments for corners to be provided by NPS to the contractor. The surveyor shall mark said section line every 500-linear feet or line of sight whichever is less. Intent of this service is to provide line clarity for fence construction.

The USFS has conducted survey work in this location and has data for the section line which NPS will help facilitate providing to the Contractor's surveyor prior to conducting field survey work.

Accessing the project area will be across U.S. Forest Service (USFS) land by an identified route defined in the construction drawings (sheet L0.2). The USFS will issue a use permit letter to the Contractor at no cost and provide through the NPS. The Contractor shall strictly adhere to all conditions of the permissible routes, equipment parameters, and fire prevention measures for utilizing USFS land. **NO contact with or use of privately owned land adjacent to NPS land shall be allowed.**

- C. All work will be performed under a single contract.
- D. Period of performance: Work for the Base Bid shall be completed within 320 calendar days of the start date provided on the Notice to Proceed. This period shall include any required adverse winter weather break periods in the work, including an anticipated on-site work winter stoppage beginning approximately mid-November and resume late March or earlier based on seasonal conditions and government approval. Work for Bid Option 1, if NPS elects to award, shall be completed within an additional 60 calendar days beyond the 320 calendar days. Work for Bid Option 2, if NPS elects to award, shall be completed within an additional 30 calendar days beyond the 320 calendar days. This period shall also include any required adverse weather break periods in the work. Any winter break or seasonal stoppage shall be accommodated at no additional cost to the Government.

- a. Clarification: The Notice to Proceed will be issued with a period of performance that is all inclusive of supply lead times, material deliveries, removals, installation, anticipated average weather days for location, including winter conditions shut down, and acceptance of last segment of completed work. The contractor will be expected to provide a project schedule with adequate critical path details to ensure all work is completed within the stated calendar days from issuance of the Notice to Proceed. If weather impacts project beyond typical average weather patterns, including duration of winter conditions prohibiting ability to install new fence, contractor shall provide documentation in request for additional days.

1.3 Existing Condition Protections:

A. Preservation of Historical and Archeological Fabric:

- i. The Historic and Archeological Data Preservation Act of 1974, provides for the preservation of historical and archeological data that might otherwise be lost as the result of alterations to the terrain caused by a federal or federally licensed activity or program.
- ii. IF, in connection with operations under this contract, the Contractor, subcontractors, or employees of any of them, discovers, encounters or becomes aware of any possible historical or archeological data, objects or sites of cultural value on the project area, such as historical ruins, graves or grave markers, fossils, or artifacts, the Contractor shall immediately suspend all operations in the vicinity of the discovery and notify the Contracting Officer immediately, when safe to do so, and follow up in writing within 2 days, giving the location and nature of the findings. No objects of cultural resource value may be removed. Contracting Officer will contact other entities as required.
- iii. Where appropriate by reason of discovery, the Contracting Officer may order delays in the time of performance and/or changes in the work. If such delays and/or changes are ordered, the time of performance and contract price shall be adjusted in accordance with Changes clause.
- iv. The Contractor will be responsible for protecting the cultural resources within and adjacent to the project area from damage. In addition, the Contractor will be liable for all damage to the cultural resources caused by their actions or the actions of their agents or representatives. The Contractor shall immediately notify the Contracting Officer or their representative if any damage occurs to any cultural resource and immediately suspend work in the area in which damage has occurred until authorized to proceed.
- v. The Contractor agrees to include this language within all subcontracts.
- vi. Refer to Attachment A, Archeological Resources Handout at the end of this specification section for guidance in recognizing resources in the field.

ITEM 2 – PROTECTING EXISTING UTILITIES (Not Applicable)

ITEM 3 - CONTRACTOR'S USE OF PREMISES

- 3.1 Conduct of Operations: At all times the contractor shall conduct his operations in conformance with the rules and regulations promulgated by the Secretary of the Interior for the National Park Service, and applicable park rules and regulations prescribed by the Park Superintendent.
[Superintendent's Compendium - Theodore Roosevelt National Park \(U.S. National Park Service\) \(nps.gov\)](#)

- A. Communications: Contractor shall provide the Contracting Officer and COR with methods of communications including land and/or cell phone numbers (note some areas of work have limited service coverage), email and in case of emergency 24-hour contact options for duration of time operations.
- B. No signs or advertisements (except those specified herein and as required for safety) shall be displayed on the construction site or within the park unless approved by the Contracting Officer.
- C. Smoking is not permitted within any Federal building or within 25 feet of entrances, operable windows, or outdoor air intakes. Extreme caution and awareness must be used to prevent any wildfire potential to the landscape.
- D. Public Use of Site: Contractor shall at all times conduct operations to ensure the least inconvenience to the public. Primary point of potential engagement with the public is at the Maah Daah Hey trail which enters NPS land in the southeast corner of the scope of work area. The contractor shall announce themselves and stop work should a hiking party approach and allow them safe passage to clear the work area as they continue on the existing trail.
- E. Overnight lodging within the park shall be an allowed option of the Contractor as a part of the general public provided the rules and regulations are explicitly followed as defined by park regulations and in the Superintendent's Compendium. The Contractor shall be solely responsible for arranging permits and reservations as a member of the public. Use of park grounds for overnight stays may be by use of the Juniper Campground in the North Unit of the park, Cottonwood Campground in the South Unit of the park, or backcountry pack in camping in proximity of the project site. Note, the regulations of both backcountry camping permits and campground reservations within NPS are limited to 14 days maximum for a single contiguous stay and 30 days maximum annually.

3.2 On-site work hours: Work shall be generally performed during normal business working hours of 7:30 a.m. to 4:30 p.m., Monday through Friday, except when otherwise indicated or approved by the CO/COR.

- A. Work on Saturdays, Sundays, Federal holidays, early morning, or at night may not be performed without prior consent from the CO and COR. Submit requests for work outside of the stated normal business hours to the CO and COR for approval at least 48 hours in advance of the work.

The following Federal holidays are observed by the National Park Service:

New Year Day
 Martin Luther King, Jr's Birthday
 Washington's Birthday
 Memorial Day
 Juneteenth National Independence Day
 Independence Day
 Labor Day
 Columbus Day

Veterans Day
Thanksgiving Day
Christmas Day

- B. Note: Any of the above holidays falling on a Saturday will be observed on the preceding Friday; holidays falling on Sunday will be observed on the following Monday. The specific day that each holiday is recognized for each year can be found at the following site: [Federal Holidays \(opm.gov\)](https://www.opm.gov/federal-holidays/).

3.3 Contractor Use of Site:

- A. General: Contractor shall have limited use of the site for construction operations. Limit use of premises to construction area within 50-feet on the NPS side of the fence. Points of approved access across USFS land as agreed upon from NPS facilitated discussions and identified in these construction documents. Staging of equipment and materials as well as work lane along the fence right of way shall be limited to a 50-foot offset into the park from the existing fence alignment or a 40-foot corridor where new fence alignment diverts from the existing fence alignment for new work. Staging of equipment or materials, including stacking removed material for haul off, is NOT allowed within USFS land along the fence alignment work area. Permissible use of a single USFS 50-feet by 50-feet area is identified in the construction documents (Sheet L0.2) for temporary transfer of materials and equipment from trailer to NPS gate under the equipment limitations cited in Sheet L0.2. Do not disturb portions of Project site beyond areas in which the Work is defined herein or where indicated on the drawings.
- B. Access and Entrances: Keep trails, access roads, and entrances serving premises clear and available to Government, Government's employees, and emergency vehicles at all times. Do not use these areas for parking or storage of materials.
- C. Do Not disturb site outside of noted disturbance area, including earthwork and clearing of vegetation.
- D. Utilities
1. General: Cost or use charges for temporary facilities shall be included in the Contract Sum as required.
 2. Water Service: Water from existing USFS water system (livestock watering tanks) is not available and water is not consistently present on NPS site within drainageways. The Contractor shall plan for full provision and transport of potable water to the project site.
 3. Electric Power Service: Electric power is not available at the project location.
 4. Waste Operation:
 - a. Toilets: If reasonably possible, the Contractor must provide toilets for contractor personnel, sufficiently ventilated toilet facilities in weatherproof, sight proof, handicap accessible (if required), sturdy enclosures with privacy locks. Coordinate with COR for approved locations that are reasonable for Contractor use, ability to service and deliver/remove, and not conflict with the public. *However, if provision of a portable toilet structure is not a reasonable possibility, see part b. which follows:*

- b. In the event the Contractor's staff is not able to have a temporary toilet provision, THRO rules for visitors within the backcountry of the park shall apply. Acceptable means of defecation shall be to use a commercially available portable waste bag system ('WAG-BAG' or similar) and remove the waste bag to lawfully dispose of off site. Second option - employ a 'cat-hole'. The cat-holing process is to carefully open a 6" diameter by 8" deep round trowel/shovel hole in the soil to receive the bodily waste. Utilize the cat-hole once and replace excavated earthen material to seal the waste within the hole. The Contractor shall provide appropriate hand sanitizer and toiletries for all staff in all provisions of toilet needs.
- c. Waste Removal / Recycling: Contractor is responsible for removing all waste created by the project. Contractor is encouraged to recycle to the highest degree possible and transport off site on regular intervals. Locate approved debris containment methods as coordinated with COR.

E. Security and Protection facilities:

1. Environmental Protection: Provide protection, operate temporary facilities, and conduct construction in ways and by methods that comply with state and federal environmental regulations and that minimize possible air, waterway, and subsoil contamination or pollution or other undesirable effects.
2. Cleaning of Equipment: The Contractor shall ensure that prior to moving on to the Project Area, all equipment, is free of soil, seeds, vegetative matter, or other debris that could contain or hold seeds. Ensure that all equipment has been pressure washed and is free of exotic species prior to start-up of operations and moving of equipment to Project Area. Equipment shall be considered free of soil, seeds, and other debris when a visual inspection by the COR does not disclose such material. Disassembly of equipment components or specialized inspection tools are not required.
3. Tree and Plant Protection: As part of Environmental Protection, the Contractor shall not conduct activities that exceed the reasonably necessary level of impact to complete the work. The work area is within tallgrass plant communities native to the region. Remain within the allowed work area, limiting circulation to defined routes, and strictly avoid wildfires from heated vehicles or other equipment or other causes all contribute to plant protection. Obtain written approval from the CO/COR for methods that include mowing grass in equipment staging or work areas to reduce wildfire or other significant impacts to vegetation. Control burning shall not be allowed by the Contractor under any circumstances.
4. Pest Control: N/A
5. Temporary Enclosures: N/A
6. Site Enclosure Fence: N/A
7. Hot Work Permit: Hot Work, defined as use of tools or equipment that produces a flame or spark, shall be limited to constructing the two suspended fence structures spanning intermittent waterways. The Contractor shall conduct as much fabrication in an off-site location which is reasonably possible. **Submit HW-1 Hot work permit form and receive approval from COR prior to Hot work activities commencing on site.** For all other fence alignment removals and new fence installation, Hot Work will not be permitted. Allowed cutting on site of concrete embedded steel posts in removal of existing fence shall be by non-spark emitting methods such as reciprocating saw or other as approved by the COR. Where Hot Work is allowed to take place, the Contractor shall implement measures

to prevent potential for fire which may include trimming vegetation down to root crown, laying sufficient fire retardant blankets, or other measures proposed by the Contractor and approved by the COR in writing.

3.4 Storage - Staging Areas:

- A. Confine Storage of materials and equipment to the project staging areas defined as a 50-foot corridor offset from the existing fence alignment into the park. Any storage units provided by the contractor shall be in a clean and acceptable condition to the COR. Security of the materials and equipment on site is the Contractor's responsibility.

3.5 Preservation of Natural Features: The entire landscape (vegetated and geological) and wildlife present within Theodore Roosevelt National Park as well as the adjacent USFS lands are considered a natural feature of the park warranting daily housekeeping and construction practices to minimize impacts beyond reasonable to conduct the work.

3.6 Hauling Restrictions: Contractor shall verify and be responsible for the path accessing the site and obtaining / maintaining all local, state and federal permits/licenses associated with hauling/road requirements and dumping of materials associated with the project.

3.7 Housekeeping:

- A. Keep project neat, orderly, and in a safe condition at all times.

- 1. Dispose of waste materials and recycling legally outside the park. The contractor shall not use park dumpsters.
- 2. Address Recycling: Government goal is to salvage and recycle as much nonhazardous construction waste as possible. Use sustainable methods to extent possible during this project, recycling material as is probable with local means. Maintain accurate documentary records for submittal of all recycled materials used in new construction.

Documenting Recycled Metal: The Contractor is encouraged to specifically document by load tickets from recycling centers all metal material that is diverted from the landfill and submit to the COR if recycling is chosen method of lawful disposal. While recycling the material is not a requirement of the contract, if conducted, THRO annual documentation of recycling metrics will include what submitted load tickets results from this project.

3.8 Occupancy Requirements for Buildings: N/A

3.9 Photo Documentation:

- A. Contractor must provide existing condition, progress, and completion photos. All photos shall be in focus, show maximum range of depth of field general photo and then close up detail photo as needed. Shall be in JPEG digital form and submitted preferably electronically by email or optional via CD-R Archival Gold or DVD-R Archival Gold media with printed labels and 8 mega pixels minimum within 7 days from time of taken or as approved by COR.

- B. Existing Condition Images:

1. Before starting construction, take color, dated, digital images of project site and adjacent property/roads/etc. that may be impacted by construction activity/traffic. Include existing items to remain or be salvaged from different vantage points and with context for location identification.

C. Construction Progress Images:

1. Document all sub-surface work/ trenches etc. prior to backfill with photos covering enough overall field view to show location and then zoom in for details. (if applicable)
2. Maintain organized index for photos with date, description, etc.
3. Additional images as needed when questions or emergency situations occur. Submit within 24 hours.

D. Completion Images:

1. Document all completed work within scope of work.
2. Maintain organized index for photos with date, description, etc.
3. Additional images as needed when questions or emergency situations occur. Submit within 24 hours.

3.10 Fire and Life Safety:

- B. As a minimum, conduct one weekly 15 minute "toolbox" safety meetings. These meetings shall be conducted by a foreman or supervisor and attended by all construction personnel at the worksite. Topics need to coincide with work scheduled for the following week. Document and submit meeting minutes to the CO and COR within one day after the meeting and document the meetings on the daily reports.
- C. Comply with the requirements of NFPA 241 (Standard for Safeguarding Construction, Alteration, and Demolition Operations). Take all necessary precautions to prevent fire during construction. Provide adequate ventilation during use of volatile or noxious substances.
- D. Store and handle hazardous materials in accordance with manufacturers and OSHA 29CFR1926 Subpart D requirements [1926 | Occupational Safety and Health Administration \(osha.gov\)](https://www.osha.gov). Maintain readily available, on site, MSDS/Safety Data Sheets (SDS) for each chemical.
 1. Immediately report all spills of hazardous materials to the CO, COR, and park.
 2. Maintain a spill emergency response kit.
 3. Train employees how to respond to a spill and use the emergency response kit.
- E. Comply with the requirements within Attachment B of these specifications – Dakota Prairie Grasslands Fire Prevention & Suppression Requirements for both USFS and NPS lands as a minimum level of fire prevention measures.

3.11 Noise and Acoustics Management

- A. Contractor shall not have personal radios or other media sources audible beyond the immediate work area and they shall not be broadcast within NPS property. Remain aware of the distance and reverberation of sounds across the badlands type landscape. The COR retains the right throughout the task order to direct Contractor to reduce volume or discontinue use of radio/media sources while on the jobsite.

B. Repetitive and/or intermittent, high-level noise:

1. Do not exceed the following dB(A) limitations at 50 feet:

<u>Sound Level in dB(A)</u>	<u>Time Duration of Impact Noise</u>
70	More than 12 minutes in any hour
80	More than 3 minutes in any hour

2. Maximum permissible construction equipment noise levels at 50 feet:

<u>EARTHMOVING</u>	<u>dB(A)</u>	<u>MATERIALS HANDLING</u>	<u>dB(A)</u>
Compressors	75	Pneumatic Tools	80
Pumps	75	Saws	75
Generators	75	Vibrators	75

ITEM 4 - COMMENCEMENT, PROSECUTION, AND COMPLETION

- 4.1 The Contractor shall commence work in accordance with the terms and conditions of the contract. Contractor shall coordinate and incorporate long lead and delivery time items within the schedule.

ITEM 5 - EXAMINATION OF THE SITE

- 5.1 All bidders are urged to visit the job site and examine existing conditions before submitting bids. Contractors will be accountable for understanding existing conditions. No cost changes for items visible during site visit will be allowed.

ITEM 6 - ABBREVIATIONS

- 6.1 The list of abbreviations, standards and organizations which may be used in/referred within the Construction Specifications or Special Provisions, may be found linked from the listed page below. On the home page, follow the link under “**Contracting and Procurement**” labeled “**NPS Reference Standards.**” <https://www.nps.gov/orgs/1671/do-business-with-us.htm>

ITEM 7 - ACCIDENT PREVENTION

- 7.1 Description: The work of this section consists of establishing and implementing an effective accident prevention program (APP) and providing a safe environment for all personnel and visitors.
- 7.2 Submittals:
- A. Accident Prevention (Safety) Plan (APP): Submit a **site-specific** accident prevention (safety) plan. The Plan shall be written to comply with OSHA and project requirements (a generic plan is not acceptable) including but not limited to the following:
1. Name and qualifications of responsible supervisor to carry out the program.
 2. First aid and rescue procedures.
 3. Training, both initial and continuing.
 4. Outline of each phase of the work, the hazards associated with each major phase, and the methods proposed to provide for property protection and safety of the public, National Park Service personnel, and Contractor's employees. Identify the work included under

each phase, with a Job Hazard Analysis (JHA)/Job Safety Analysis (JSA), etc. A sample JHA template may be provided upon request.

5. Planning for possible emergency situations, such as cave-ins, earthquake, explosions, fires, floods, power outages, slides, windstorms, and wildlife encounters which may include but not limited to bison, elk, moose, or rattlesnake. Such planning shall take into consideration the nature of construction, site conditions, and degree of exposure of persons and property.
6. Contractor to identify nearest location of medical facility for emergencies
7. Recognition that works will be performed in remote areas with limited communication or cell phone coverage if applicable.
8. Supplemental hazard specific plans may be required IAW 29 CFR 1926 or 1910.

- B. Meeting and Inspection Reports: Safety Meetings: As a minimum, conduct 15 minute "toolbox" safety meetings. These meetings shall be conducted by a foreman and attended by all construction personnel at the worksite. Submit a report of safety meetings and inspections to CO and COR within one day after the meeting and document the meetings on the daily reports.

7.3 Qualification of Employees:

- A. Ensure that employees are physically qualified to perform their assigned duties in a safe manner to include operators of vehicles and equipment. Provide operating instructions for all equipment.
- B. Do not allow employees to work whose ability or alertness is impaired because of drugs, fatigue, illness, intoxication, or other conditions that may expose themselves or others to injury.

7.4 Accident Reporting: The Contractor shall report all accidents to the CO and COR as soon as safely possible and assist the CO and COR and other officials as required in the investigation of the accident.

7.5 First Aid Facilities: Provide access to facilities for the number of employees and appropriate to the hazards associated with the types of ongoing construction work at the site.

7.6 Emergency Instructions: Post telephone numbers and reporting instructions for ambulance, physician, hospital, fire department, and police in conspicuous locations at the work site.

7.7 Personal Protective Equipment (PPE): It is the Contractor's responsibility to require all those working on or visiting the site to wear necessary protective equipment at all times.

- A. PPE must meet requirements of applicable ANSI standards. Selection shall conform to OSHA 29CFR 1926 Subpart E.
- B. A hard hat use area shall be designated by the Contractor. The hard hat area shall be posted by the Contractor in a manner satisfactory to the Contracting Officer.

- C. All PPE will be serviceable at all times. At a minimum, maintain two standby sets of PPE including hard hats and all other Accident Prevention Plan required equipment beyond one set per each employee on site.

7.8 Hazardous Materials: It shall be the responsibility of all operators and contractors, functioning within the park to properly cleanup, mitigate and remediate if necessary, all unauthorized discharges of hazardous materials or non-hazardous chemical and biological products released from fleet and/or other support vehicles or stationary sources. Response shall be consistent with guidelines established by federal, state, and local regulations, and as outlined within the operator's Safety or Hazardous Materials Business Plan.

- A. If a spill, leak, or other release occurs, the operator shall as soon as possible, without impeding cleanup, notify the local 911 Emergency Response, COR and or the National Park Service Emergency Dispatch.

ITEM 8 - PRECONSTRUCTION CONFERENCE

8.1 If the Contracting Officer decides to conduct a preconstruction conference, the successful offeror will be notified and will be required to attend. The Contracting Officer's notification will include specific details regarding the date, time, and location of the conference, any need for attendance by subcontractors, and information regarding the items to be discussed. See Item 9.1C below.

ITEM 9 - SUBMITTALS

9.1 General Contracting Submittal Procedures:

- A. General: Prepare and submit submittals required by individual Technical Specification Sections. Types of submittals are indicated in individual specific sections.
 - 1. CM-16 Transmittal Form: All submittals shall be transmitted via electronic email using National Park Service form CM-16 form. The form will be provided by the Contracting Officer. No action will be taken on a submittal item unless accompanied by the CM-16 transmittal form. Submit completed CM-16 forms to the CO and the COR
- B. Submittal List: administrative required submittals are listed below in 9.1.C and does not include the entirety of submittal requirements which are additionally included in the construction drawings.
- C. Preconstruction Conference Submittal: Satisfactory evidence of liability insurance coverage and workman's compensation, and any applicable bonds, must be submitted within 10 calendar days of Notice of Award. The following items are to be submitted prior to the Preconstruction Conference or as specified at the CO's discretion. The timeline for the documents to be submitted will be addressed at the pre-construction conference for those items that were not received and approved prior. Notice to Proceed may not be issued, and the Contracting Officer will consider other contractual remedies if not resolved as directed. Work shall not commence until written Notice to Proceed has been issued. Contracting Officer will notify Contractor of tentative date for the Pre-Construction Conference:
 - 1. Letter designating Project Superintendent.

2. Construction Schedule. (Must include shop drawings, procurement time including long lead time items, mobilization, trade work progression and completion at minimum.)
3. A comprehensive breakdown of the Schedule of Values.
4. Accident Prevention (Safety) Plan (see section 7 of this document).
5. A list of Subcontractors for this project.
6. Written statements from subcontractors certifying compliance with applicable labor standard clauses (SF1413).
7. Quality Control Plan.
8. Waste Management Plan: Metal Recycling
9. Hot Work Permit application for suspended fence structures
10. Proposed Vehicles and Equipment Use (USFS and NPS lands)
11. Proposed Haul In / Haul Out and Site Access Frequency
12. Fire Prevention Plan

9.2 Project Submittal Process (Shop Drawings, Product Data, and Samples): Contracting Officer will provide sample cover sheet and a list of required submittals is included in each technical specification or attached at the end of this document.

A. Shop Drawings: Indicate all coordinating materials and work impacting the installation coordination, connection details, anchorage requirements, hardware locations, and installation details and locations.

1. Submit Shop Drawings according to Part 9.1 of this section to include one digital file (.PDF or .TIF) and two full size hardcopy documents to COR.

B. Product Data: Provide component construction and specification data sheets, anchorage requirements and any other product specific data.

1. Submit Product Data according to Part 9.1 of this section to include one digital file (.PDF or .TIF) to COR.

C. For submittals specified above, forward submittals to Contracting Officer and COR at least 15 days before need for approval (depends on length of project).

D. After approving submittals, Contracting Officer and/or COR will return one copy to the Contractor. If submittals are not approved, Contracting Officer will return all copies to Contractor with reasons for rejection. Resubmit, identifying changes. Any work done before approval shall be at Contractor's own risk.

9.3 Approved Equals: All brand names noted are subject to 'or equal' products. If an item in this solicitation is identified as "brand name or equal" or lists more than 1 manufacturer, the description of the proposed item must reflect the characteristics and level of quality that will satisfy the Government's needs as demonstrated by the salient physical, functional, or performance characteristics that "equal" products must meet and/or exceed that as specified in the solicitation or relevant specification. Contractor shall incorporate and be responsible for all collateral costs due to the or equal proposed as required to provide a complete project.

A. For each item proposed as an "approved equal," submit supporting data, including:

1. Drawings and samples as appropriate.
2. Comparison of the characteristics of the proposed item with that specified and with the salient characteristics provided.
3. Changes required in other elements of the work because of the substitution.
4. Name, address, and telephone number of vendor.
5. Manufacturer's literature justifying equivalency.

B. A request for approval constitutes a representation that General Contractor:

1. Has investigated and shall provide documentation in request showing that the proposed item is equal or superior in all respects to the salient characteristics specified.
2. Will meet or exceed warranties for the proposed item specified.
3. Has determined that the proposed item is compatible with interfacing items.
4. Will coordinate the installation of an approved item and make all changes required in other elements of the work because of the substitution.
5. Waives all claims for additional expenses that may be incurred as a result of the substitution.

C. Approved Equals will be evaluated and approved/disapproved during the submittal process.

9.4 Schedule of Values: Submit the Schedule of Values a minimum of one week prior to the Preconstruction Conference for COR review. Schedule of Values shall include defined work line items with cost break downs including labor, material, and equipment for COR approval.

9.5 Progress Reporting: The initial Construction Schedule and Schedule of Values are required a minimum of one week prior to the Preconstruction Conference. After the Notice to Proceed is issued and after on-site work begins, progress will be documented via daily logs and by providing an updated Construction Schedule and Schedule of Values when requested, but minimally with each pay application. Submit digital copy electronically (PDF preferred) of all required documents. Construction Schedules are normally in bar chart form and indicate estimated starting and completion dates for each part of the work. For a pay application to be reviewed and processed in a timely manner, the following information must either be submitted prior to or accompany submission of the pay application:

A. Daily/weekly progress reports during construction as part of the administration process.

B. Updated Schedule of Values: Breakdown each lump-sum item into component work activities used in the schedule, for which progress payments may be requested. The Schedule of Values will form the basis for payment. The work activities broken out within the schedule of values shall be integrated into and made a logical part of the construction baseline schedule submitted under this specification. The total costs for the component work activities shall equal the contract price for that lump-sum item. The Contracting Officer may request data to verify accuracy of dollar values. A sample Schedule of Values format may be provided upon request.

ITEM 10 – TEMPORARY SERVICES

- 10.1 It is the Contractor's responsibility to provide temporary services, equipment, tools, and skilled labor as required for the chosen means and methods to perform the work in accomplishing this Contract.

ITEM 11 - PROJECT CLOSEOUT

- 11.1 Description: The work of this section consists of final cleanup, closeout submittals, final inspection procedures of phased completion of the fence working toward Final Acceptance.
- 11.2 Cleaning: Remove all tools, equipment, surplus materials, and rubbish. At time of final inspection, project shall be thoroughly clean and ready for intended use. Inspector holds the right to reschedule if project is not ready for inspection.
- 11.3 Completion and Inspection of Installation: Contractor shall submit written certification of project completion and request a final inspection to the Contracting Officer and COR. The Contracting Officer or designee will make an inspection within 10 days of receipt of request or at a mutually agreeable time.
- A. If the work is determined to be complete following the final inspection with minor comments, the COR will prepare and provide the Contractor a Punch List noting outstanding items to be addressed.
 - B. If the work is not determined to be complete following the final inspection, the Contracting Officer will notify Contractor in writing, stating reasons. Contractor, after completing the work according to the Contract Documents, shall resubmit completion and request a new final inspection. Re-inspection costs may be charged against the Contractor in accordance with the Inspection of Construction contract clause.
 - C. Contractor shall complete the Punch List within 30 calendar days, or a time directed by the CO.
 - D. Once Contractor completes all items of work on the Punch List and all contractually required items are accepted, Contracting Officer will issue Letter of Final Acceptance of Work and request the final pay application.
 - E. If the Contractor fails to complete the work within the time frame, the Contracting Officer may correct the work with an appropriate reduction in contract price or charge for re-inspection costs in accordance with the Inspection of Construction contract clause.
 - F. NOT USED
- 11.4 Final Acceptance of the Work: After all punch list deficiencies have been corrected, a Letter of Final Acceptance will be issued. A Release of Claims document must be executed and submitted to the Contracting Officer before final payment can occur.
- 11.5 Warranties
- A. Construction Warranty shall be based on date of final acceptance of the work and remain in effect for one year.

- B. Provide all manufacturer warranty information of products installed. All contact information, extent of coverage and conditions shall be clearly noted as well as date of overall final acceptance.

ITEM 12 - DEFINITION OF CONTRACT LINE ITEMS

12.1 Summary

- A. The intent of this section is to explain, in general, what is and what is not included in a contract line item, and the limits or cut off points where one item ends and another begins.
- B. If no contract line item exists for a portion of the work, include the costs in a related item.

12.2 List of Contract Line Items

C. Contract Line Item No. 001:

1. This items consists of providing all materials, equipment and labor to remove exiting fence and construct new fence beginning at the Corral Creek crossing and proceed an approximate distance of 4400 linear feet as the Base Bid. Terminate fence construction by tying into existing fence remaining with new double H-brace corner structures at both ends of the project limits.
2. Payment will be made per the contract and percentage of completion level.

D. Contract Line Item No. 002

1. This item consists of providing all materials, equipment and labor to remove existing suspended fence spans crossing the Corral Creek and an un-named drainageway and construct new cable suspended fence structures terminating with welded steel pipe fence panel abutments. Location of structures to be field verified and are expected to span up to 60 linear feet.
2. Payment will be made per the contract and percentage of completion level.

E. Bid Option 1:

1. Contract Line Item No. 003:

- a. This item consists of providing all materials, equipment and labor to remove exiting fence and construct new fence beginning a the Base Bid terminating point and extend an approximate distance of 1300 linear feet. Terminate fence construction at end of butte ridgeline where shown on in the construction drawings as Bid Option 1.
- b. Payment will be made per the contract and percentage of completion level.

F. Bid Option 2:

1.Contract Line Item No. 004:

- a. This item consists of providing all materials, equipment and labor to remove exiting fence and construct new fence across a butte saddle an approximate distance of 450 linear feet as Bid Option 2.
- b. Payment will be made per the contract and percentage of completion level.

PART 2 – PRODUCTS (NOT USED)

PART 3 – EXCUTION (NOT USED)

END OF SECTION

Attachment A

Archeological Resources Handout Theodore Roosevelt National Park Adam Wiewel, MWAC Archeologist January 2026

This guide is meant to provide illustrative examples of commonly encountered archeological artifacts and features at Theodore Roosevelt National Park to aid in their recognition by contractors and park staff. While areas within which ground disturbing activities are permitted have been surveyed previously by archeologists, archeological sites and isolated finds are occasionally overlooked or more recently exposed due to factors like erosion.

If archeological artifacts or features are observed, please leave them in place and notify Blake McCann (blake_mccann@nps.gov, 701-623-4466) or Adam Wiewel (adam_wiewel@nps.gov, 402-890-1567) as soon as possible. We will expeditiously confirm an identification and provide guidelines for documenting and minimizing impacts.

Archeological sites dating to the late 19th and early 20th centuries associated with ranching and farmsteading can be found across the North and South Units of the park. Intact remnants of historical buildings frequently include stacked stone or isolated foundation stones. Early 20th century structures were occasionally built on concrete foundations. Scattered bricks or brick fragments, including terracotta and yellow- or buff-colored bricks, can be found at these sites. Similarly, milled lumber is sometimes found at these sites although there was an effort to salvage or remove building materials like brick and lumber during the 1930s and 1940s.

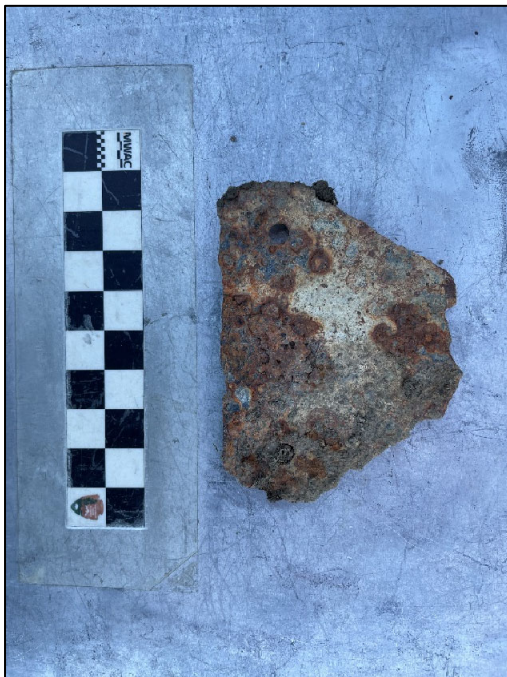


Caption: Example of stacked stone foundation (l) and alignment of stones (r) representing the remnants of a foundation.



Caption: Examples of terracota and yellow- or buff-colored bricks.

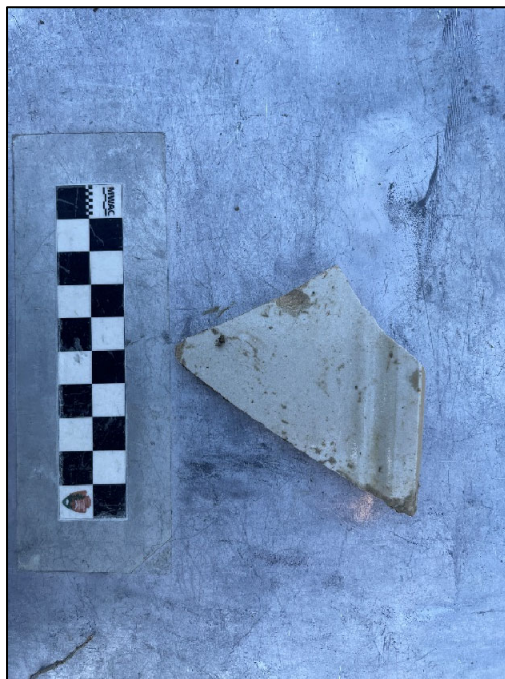
Miscellaneous metal items, flat and curved glass fragments of various colors, and historic ceramics (whiteware, stoneware, and others) are especially common, including isolated finds and concentrations of artifacts.



Caption: Examples of metal objects, including sickle mower tooth (l) and butter churn crank handle (r).



Caption: Examples of colorless (clear), amber, and purple glass jar, bottle, and inkwell fragments and other items.



Caption: Three whiteware sherds (l) and stoneware (r) crockery rim sherd.

Wooden fence posts and barbed wire fragments are two of the most encountered historical artifacts at Theodore Roosevelt National Park. Unless these items are associated with a site (a corral or farmstead complex), we may note them, but they are typically designated as a non-site.

Dry-stacked and mortared retaining walls and culvert headwall or endwalls composed of sandstone masonry were built across the park by the Civilian Conservation Corps during the 1930s and 1940s. Most are associated with the park's roads, but such features were sometimes built along trails.



Caption: Example of dry-stacked stone wall behind a more modern wooden wall (l) and a mortared sandstone culvert headwall and archway.



Caption: Bench consisting of sandstone masonry at a trail observation point.

Isolated pieces or clusters of sandstone masonry, which have different purposes, can also be found. The sandstone was quarried and worked, so chisel and drill marks can often be identified on individual blocks used for construction.



Caption: Examples of chisel (l) and drill marks (r) on sandstone masonry.

Historical graffiti dating to the late 19th and early 20th centuries is frequently found on exposed stone outcrops and free-standing boulders. Differentiating historical from modern graffiti is generally straightforward. Obviously, dates associated with names or initials are most telling. Historical graffiti is usually more deeply etched than modern graffiti, and it can sometimes be pecked or chiseled. Also, historical graffiti is usually patinated to some extent.

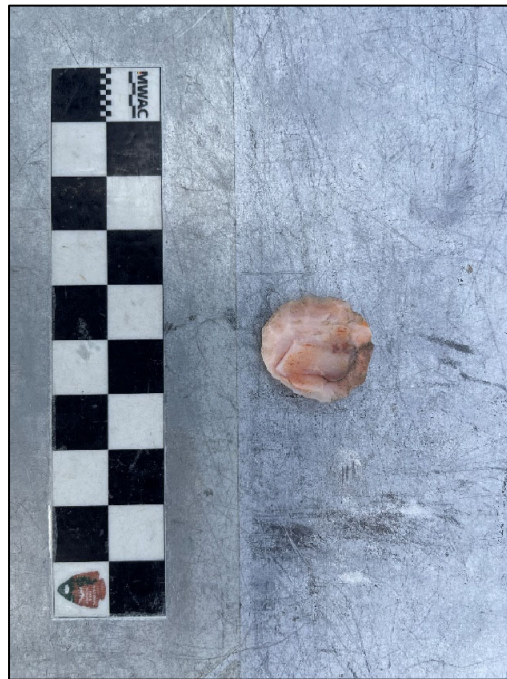
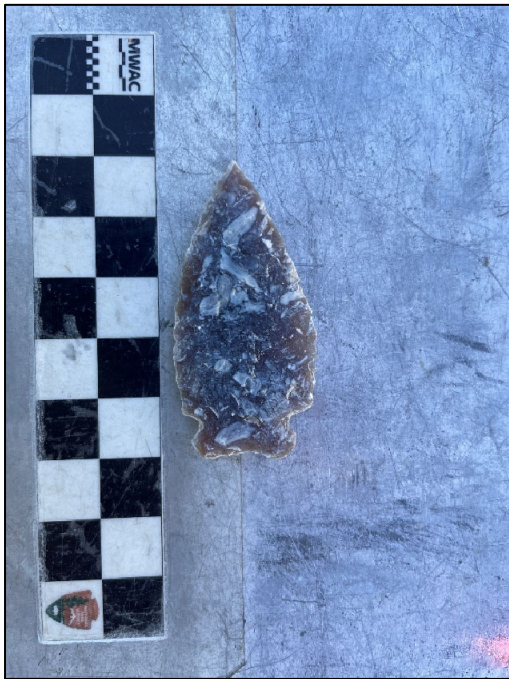


Captions: Examples of historical graffiti.

Precontact Native American artifacts and sites are located throughout the park. Stone artifacts are most common, usually in the form of flaking debris created as a byproduct of making tools like projectile points, hide scrapers, and other items. Many stone material types were used for flintknapping, but Knife River flint (upper left), chalcedony (upper right), porcellanite (lower left), and silicified wood (lower right) are some of the most frequently observed.



Caption: Examples of flaking debris made from frequently encountered stone material types.



Caption: Examples of stone tools made from Knife River flint (upper left), chalcedony (upper right), porcellanite (lower left), and silicified wood (lower right).

Knife River flint is easily recognizable because of its caramel brown, translucent appearance and white to orange colored cortex (exterior). Cherts and chalcedonies from White River Group Silicates sources vary, but the examples illustrated here, which are cream-colored and translucent with white cortex, are common. Porcellanite can also differ in color, but the uniformly gray variety shown here is regularly found within the park. Similarly, examples of silicified wood

vary in color, but many exhibit streaking or banding associated with the rings of the fossilized wood.

Flaking debris can be easily overlooked or otherwise difficult to differentiate from naturally occurring stone. Bifacially flaked (worked on both sides) stone tools like projectile points and knives and other flaked items like end scrapers are more readily recognizable.

Although relatively rare within the park's boundary, precontact ceramics have been observed at a small number of archeological sites. These items consist of broken ceramic sherds, usually cord roughened on the exterior surface and smooth on the inner, with noticeably coarse grit temper (material added to the clay).



Caption: Examples of ceramic sherds with cord roughened surfaces (l) and close-up view of grit temper inclusions (r).

Attachment B

Dakota Prairie Grasslands Fire Prevention & Suppression Requirements (Revised 1/31/2023)

A. General: A Holder is defined as the Permittee (permit holder), or Lessee and/or Operator and their representatives, employees, workers, contractors, and subcontractors.

1. Compliance to the stipulations in this exhibit shall not preclude the Holder from complying with any other Federal, State, County, or municipal laws, ordinances, or regulations pertaining to fire prevention and suppression.
2. It is the Holder's responsibility to obtain and know the daily Fire Danger Rating and fire restrictions on or near the lands to be occupied under an approved authorization. For information on Fire Danger Rating, fire restrictions, and red flag warnings use the website: <https://www.ndresponse.gov/burn-ban-restrictions-fire-danger-maps#redflagwarningmap> or contact local fire officials, the North Dakota Forest Service, Bismarck National Weather Service, or the North Dakota Division of Emergency Services.
3. To the extent practicable, the Holder, their employees, contractors, and subcontractors, shall take measures to prevent uncontrolled fires on the area of operations resulting from the operations. Self-inspections are encouraged.
4. The Holder shall promptly report all fires, regardless of size, to:
 - a) Local fire department (911)
 - b) Forest Service office where permit is held. The Holder is responsible to submit a complete written follow-up Fire Report within 24 hours of reporting a fire.
5. The Holder, and if applicable, the applicable lessees and transferees are jointly and severally liable in accordance with Federal and State laws for indemnifying the United States for: (a) Injury, loss or damage, including fire suppression costs, which the United States incurs as a result of the operations; and (b) Payments made by the United States in satisfaction of claims, demands or judgments for an injury, loss or damage, including fire suppression costs, which result from the operations.

B. Fires: With the exception of approved facilities, fires (fires for warming, burning wastes, brush disposal, debris, etc.) are prohibited unless approved in writing from the District Ranger.

C. Smoking: All smoking will be done inside of vehicles or in areas cleared of flammable material when the ND Fire Danger Rating is "Very High" or "Extreme".

D. Fireworks: Fireworks are prohibited on public lands.

E. Exhaust & Arrester Systems: Each internal combustion engine shall be equipped with a manufacturer's approved or equivalent spark arrester or spark arresting device or system. Heavy-duty trucks may have a vertical stack exhaust system with muffler, provided the exhaust stack extends above the cab of the vehicle. An exhaust driven turbocharger is considered to be a satisfactory spark arrester. Internal combustion engine exhaust systems, arresters and other devices shall be properly installed and maintained.

F. Catalytic Converters: The Holder shall take extra precautionary measures when driving off-road with vehicles equipped with catalytic converters. Such measures shall include but are not limited to: avoid driving over or through vegetation tall enough to come into contact with the converter, avoid parking in vegetation tall enough to come into contact with the converter, and keep all debris from building up around or on the exhaust system.

G. Chainsaws: The sawyer shall have a shovel and a fire extinguisher, containing not less than eight (8) ounces of extinguisher fluid or a dry chemical powder type of not less than one (1) pound capacity. The sawyer shall carry the extinguisher at all times. All refueling shall be done on bare soils. Chainsaws will have a manufacturer approved or equivalent spark arrester.

H. Required Fire Suppression Equipment: Any vehicle and/or piece of equipment used off-road will be equipped with an operational, charged fire extinguisher with a minimum 2 ½ pounds capacity and 4 BC or higher rating and a shovel (round point #0 or equal). When the ND Fire Danger is “Very High” or “Extreme” at least one additional filled 5-gallon backpack container with hand pump (or equivalent) is required per group of 5 vehicles or less.

I. Welding: Welding and use of cutting torches or cutoff saws will be permitted only in areas that have been cleared or are free of all material capable of carrying fire. Flammable debris and vegetation must be removed from within a minimum ten (10) foot radius of all welding and cutting operations or fireproof welding blankets used. A charged fire extinguisher with a minimum 2 ½ pounds capacity and 4 BC or higher rating (or equivalent) will be required on site.

When the "Fire Danger" is in the “High” category or above, each welding crew will have available, in the immediate working or project area, a ground tanker of not less than three hundred (300) gallon capacity with a pump capable of pumping twenty (20) gallons per minute at a minimum of forty (40) pounds per square inch (PSI) and not less than one hundred (100) feet of hose.

No welding is permitted in the “High” category or greater when winds exceed twenty (20) miles per hour, ND Fire Danger is “Extreme”, or when a red flag warning has been issued for the area.

J. Fire Suppression Plan: Upon request from the District Ranger, or when required by regulation, the Holder shall submit a Fire Suppression Plan to be included as part of the Permit Package or Plan of Operations.

K. Failure to Comply: Failure to comply may result in the immediate suspension of all or portions of the operations/permits.

Kim Anderson-McKenzie District Ranger

Misty Hays-Medora District Ranger